

§ 564. Order of filiation in other proceedings. (a) In any proceeding in the family court, whether under this act or under any other law, if there is an allegation or statement in a petition that a person is the father of a child who is a party to the proceeding or also is a subject of the proceeding and if it shall appear that the child is a child born out-of-wedlock, the court may make an order of filiation declaring the paternity of the child in accordance with the provisions of this section.

(b) The court may make such an order of filiation if (1) both parents are before the court, (2) the father waives both the filing of a petition under section five hundred twenty-three of this act and the right to a hearing under section five hundred thirty-three of this act, and (3) the court is satisfied as to the paternity of the child from the testimony or sworn statements of the parents.

(c) The court may in any such proceeding in its discretion direct either the mother or any other person empowered under section five hundred twenty-two of this act to file a verified petition under section five hundred twenty-three of this act.

(d) The provisions of part four of this article five shall apply to any order of filiation made under this section. The court may in its discretion direct a severance of proceedings upon such order of filiation from the proceeding upon the petition referred to in subdivision (a) of this section.

(e) For the purposes of this section the term "petition" shall include a complaint in a civil action, an accusatory instrument under the criminal procedure law, a writ of habeas corpus, a petition for supplemental relief, and any amendment in writing of any of the foregoing.